JBF RAK LLC

Date: 19Sep 2021

DECLARATION

Declaration relating to ARYAFILM intended to come into contact with foodstuffs.

We hereby declare that ARYA FILM AG413 is conforming EU Commission Regulation (EU) No 10/*2011* of 14 January *2011* on plastic materials and articles intended to come into contact with food & subsequent amendments EU directive 1282/2011 dated 28.11.2011, EU No 2016/1416 Dated 24 August 2016, (EU) 2017/752 of 28 April2017, (EU) 2019/37 of 31st January 2019, (EU) 2019/1338 of 8th August 2019 and its latest amendment Commission Regulation (EU) 2020/1245 2nd September 2020.

We declare and confirm that ARYAFILM produced by JBF RAK, meets the requirements listed in: Regulations 2018/213; 79/2018, 831/2018 amendment of 12 Feb 2018, 18 Jan 2018, 05 June 2018 & 02 Sep 2020 respectively Amending Regulation 10/2011/EC, JBF is a BOPET film manufacturing company and is operating under good manufacturing practice.

We hereby declare that ARYAFILM produced and supplied by JBF complies below regulations

- US FDA 21 CFR177.1630
- Japan food sanitation law of 1947
- Japan Ministry of Health, labour and welfare (MHLW), general specifications for Container and packaging.
- Japan Ministry of Health, labour and welfare (MHLW), general specifications for material use in packaging.
- China National standard on plastic resins for food contact use GB 4806.6- 2016
- China National food safety standard on general safety requirements of food contact materials and articles GB 4806.1-2016
- China National standard on the use of additives in food containers and packaging materials: GB 9685-2016

Traceability: The material we produce is with the unique batch number and is tracessable till its base raw material. All the batches are individually labeled for its predefined characteristics. We do not change any formulation of the basic raw material.

We are an ISO 9001-2015 Company, all the operations are carried out in accordance with pre-established instructions and Procedures to ensure the compliance of the finished products with the Plastics Regulations, Regulation (EC) No 1935/2004 and (EC) No 2023/2006 dated 22 December 2006.

The Aryafilm meets not only the requirements of Regulation (EC) No. 1935/2004 in general but particularly the requirements laid down in Article 3, 11(5), 15 and 17 of Regulation (EC) No 1935/2004.

ARYAFILM does not contain any post-consumer Recycled materials or the components of active and intelligent materials are also not used at any stage of ARYAFILM processing hence The Regulation (EC) No 282/2008 and EC450/2009 are not applicable.

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As none of the restricted Catalyst given in BFR is used in manufacturing process of Aryafilm. The film also complies with the BfR Recommendations as per Commission Regulation (EU) No 10/2011 on Food Contact Materials.

The film meets the requirements of German law "Lebensmittel-bedarfsgegenstände und Futtermittelgesetzbuch" (LFBG 30 and 31, before LMBG) and Bedarfsgegenständeverordnung (BGV) As the composition of the film is in accordance with EU10/2011 the film complies with the German Federal Institute foe Risk Management Recommendation XVII. Polyterephthalic acid diolesters. The film also fulfils the requirements in Switzerland.

All the monomers and additives used in the composition of the above product are listed in the union list of authorised substances stated in commission regulationEU10/2011 and its amendment 2016/1416.and the latest amendment **(EU) 2017/752 of 28 April 2017** Annex I.

a) Plastic Overall Migration

Method: with reference to EN 1186-1-2002 for selection of test method. EN 1186-5-2002 aqueous food simulants by cell method.

Simulant used	Test Condition	Result (Mg/dm^2)	Reporting limit (Mg/dm^2	Permissible limit (Mg/dm^2)	Food Types	Contact conditions
3% Acetic Acid	4 hrs at 100˚ C	ND	2.0	10	All type of foods.	Any time and temperature
10% Ethanol	4 hrs at 100˚ C	ND	2.0	10		
Rectified olive oil	02 hrs at 175˚ C	Less than 4.9	3.0	10	All type of foods	Any time and temperature

The film complies with the overall migration limit for all type of foods.

b) Specific Migration of Terephthalic Acid, Isophthalic Acid and Ethylene and Diethylene Glycol.

Method: With Reference to EN 13130-1:2004 Analysis was performed by HPLC-DAD. Simulants used: Ethanol 10 % ,3% Acetic acid (W/V) in Aqueous Solution, Simulant A and B. Test Condition: 10 days at 60ºC followed 100°C for 4 hours .

And Olive Oil Simulant D2 using exposure conditions of 10 days at 60ºC followed by 2 hours at 175ºC.

Specific Migration of Antimony trioxide.

Method: With Reference to EN 13130-1:2004 Analysis was performed by ICP-OES/ICP-MS . Test Conditions: Samples were exposed to simulant B using exposure conditions of 10 days at 60ºC followed

by 4 hours at reflux and to simulant D2 using exposure conditions of 10 days at 60ºC followed by 2 hours at 175ºC.

Components	Simulants	Limit (Mg/Kg)	Results (Mg/Kg)
Mono ethylene glycol + Di ethylene glycol	10% Ethanol	≤ 30	≤ 3.7
Mono ethylene glycol + Di ethylene glycol	3% acetic acid	≤ 30	≤ 3.7
Mono ethylene glycol + Di ethylene glycol	Olive oil	≤ 30	≤ 3.7
Terephthalic Acid	10% Ethanol	≤ 7.5	≤ 0.5
Terephthalic Acid	3% acetic acid	≤ 7.5	≤ 0.5
Terephthalic Acid	Olive oil	≤ 7.5	≤ 0.5
Isophthalic Acid	10% Ethanol	≤ 5.0	≤ 0.5
Isophthalic Acid	3% acetic acid	≤ 5.0	≤ 0.5
Isophthalic Acid	Olive oil	≤ 5.0	≤ 0.5
Antimony trioxide	3% acetic acid	≤ 0.04	Not detected
Antimony trioxide	Olive oil	≤ 0.04	≤ 0.018

The Overall migration results obtained were found to be below the overall migration limit defined in EC directive 10/2011 with its latest amendment EU 2017/752 dated 28 April 2017.

Additionally, the above product contains three monomers and one additive which are listed in the specific migration limits in section A of the legislation (Terephthalic acid, Isophthalic Acid, Mono ethylene glycol and Antimony based additive) Test showed that the limits specified for these substances in EC directive EC10/2011 and its amendments EC2017/752 are not exceeded under the above test conditions.

The overall migration is express as the amount in milligrams of material lost from one decimeter Square surface (mg/dm²), as the total immersion method was used , results were calculated taking into account of area of only one surface of test specimen , i.e for a 1dm² test specimen the surface area used for calculation was 1 dm².

The above product therefore fully meets the migration requirements of EC directive 10/2011 and its amendments for use with all classes of foodstuff for any period of time at any temperature.

c) Specific Migration of Heavy Metals. (Article 19 of EU 10/2011)

Method: With Reference to EN 13130-1:2004 Analysis was performed by ICP-OES.

Simulants used: 3% Acetic acid (W/V) in Aqueous Solution. Test Condition: 60˚ C for 10 days.

Test Item	Result (mg/kg)	Reporting Limit (mg/kg)	Permissible Limit (mg/kg)
Specific migration of Aluminum*	ND	0.25	1.0
Specific migration of Barium	ND	0.25	1.0
Specific Migration of Cobalt	ND	0.01	0.05
Specific migration of Copper	ND	0.25	5.0
Specific migration of Iron	ND	0.25	48.0
Specific Migration of Lithium	ND	0.5	0.6
Specific Migration of Manganese	ND	0.25	0.6
Specific migration of Zinc	ND	0.5	5.0

* The metalize film is metalized with Aluminum, the base film is tested for the presence of impurities, this declaration is base film not for metallized films.

Non-intentionally Added Substances (NIAS): Aryafilm shall be tested once in three years by carrying out screening tests to determine the presence and levels of Non-Intentionally Added Substances (NIAS) in the products. The following substances may be present in the film.

Monomer / Additive	CAS No	Restrictions (SML)
Terephthalic acid	100-21-0.	7.5
Isophthalic acid	121-91-5	5 (T)
Mono ethylene glycol	107-21-1	30(T)
Diethylene Glycol	6-46-111	
Polyethylene glycol mono alkyl ether	25322-68-3	1.8
Antimony		0.04
Cobalt		0.05
Manganese		0.6
Iron	7439-89-6	48
Acetaldehyde	75-07-0	6

Aryafilm Complies with Article 3 of Regulation (EC) No 1935/2004 of substances referred to in Articles 6(1), 6(2), 6(4), 6(5) and 14(2) of EU Regulation 10/2011 which are not covered by an inclusion in Annex I. The film complies with article 19 of EU 10/2011.

<u>Sensorial examination odor and taste test.</u>

Test Performed: In Accordance with German Food, Articles of Daily use and feed code of September 1, 2005 (LFGB) with its amendment, section 30 and 31 and regulation EC No 1935/2004

Test Method: With reference to DIN 10955:2004

Test Media: Water

No.of Panelist 06

Test Items

Test Time (Hr(S)): 240

Temperature (˚ C): 40

Test	Result	Limit
Sensorial examination Taste(Point Scale)	0	2.5
Sensorial examination odor (Point Scale)	0	2.5

Scale evaluation

0- No perceptible difference,
1- Just perceptible difference
2- Slight difference
3- Marked Difference
4- Strong difference.

Polycyclic Aromatic Hydrocarbon (PAH)

Test Method: With Reference to AFPS GS 2014: 01 PAH Analysis was conducted by Gas Chromatography –Mass Spectrometry.

Test Item	CAS No.	Results (mg/kg)	Reporting limit (MG/kg)
Naphthalene (NAP)	91-20-3	ND	0.2Mg/Kg
Acenaphthylene (ANY)	208-96-8	ND	
Acenaphthene (ANA)	83-32-9	ND	
Fluorene (FLU)	86-73-7	ND	
Phenanthrene (PHE)	85-01-8	ND	
Anthracene (ANT)	120-12-7	ND	
Fluoranthene (FLT)	206-44-0	ND	
Pyrene (PYR)	129-00-0	ND	
Benzo(a)anthracene (BaA)	56-55-3	ND	
Chrysene (CHR)	218-01-9	ND	
Benzo(b)fluoranthene (BbF)	205-99-2	ND	
Benzo(j)fluoranthene (BjF)	205-82-3	ND	
Benzo(k)fluoranthene (BkF)	207-08-9	ND	
Benzo(a)Pyrene (BaP)	50-32-8	ND	
Indeno(1,2,3-c,d)pyrene (IPY)	193-39-5	ND	
Dibenzo(a,h)anthracene (DBA)	53-70-3	ND	
Benzo(g,h.i)Perylene (BPE)	191-24-2	ND	
Benzo(e)Pyrene (BeP)	192-97-2	ND	

FOOD contact uses in the United States

US FDA 21 CFR177.1630

Method: According to US FDA 21 CFR177.1630 (f)

Test Parameters	Simulant /test Condition	Results (mg/Inch square
Net Chloroform soluble Extractives	Distilled Water @250 deg F for two hrs	< 0.5
	n-Heptane @ 150 deg F for two hrs.	< 0.5

Method: According to US FDA 21 CFR177.1630 (g)

Test Parameters	Simulant /test condition	Results (mg/Inch square
Net Chloroform soluble Extractives	Distilled Water @250 deg F for two hrs	< 0.5
	n-Heptane @ 150 deg F for two hrs.	< 0.5
	50% Ethanol @ 150 deg F for 24 hrs	< 0.5

Method: According to US FDA 21 CFR177.1630 (h)

Test Parameters	Simulant /test condition	Results (mg/Inch square
Net Chloroform soluble Extractives	Distilled Water @250 deg F for two hrs	< 0.02
	n-Heptane @ 150 deg F for two hrs.	< 0.02

The results are expressed as the total mass material extracted per square inch of surface contact. since the limit is expressed in 21 CFR 177.1630 as the chloroform soluble portion of the extract (rather than to total extract), where total extract was less than the limit . Hence no chloroform extraction procedure has been carried out.

From the above tables we hereby confirm that ARYAFILM fully meets the requirements of FDA regulation US FDA 21 CFR 177 .1630 f (1), g (1) and is suitable for use in packaging, transporting or holding foods, including alcoholic beverages at temperatures not to exceed 250° F.

Additionally, Aryafilm meets the requirements of FDA regulation US FDA 21 CFR 177 .1630 h (1) and is suitable for use in containing foods during oven cooking or oven baking, at temperatures above 250° F.

RoHS (Heavy metals)

ARYAFILM is a Biaxially Oriented Polyester film and comply with Directive EU 2015/863 amending Annex II to directive 2011/65 EU. It does not contain any heavy metals such as Lead (Pb), Mercury (Hg), Cadmium (Cd), Hexavalent Chromium: (Cr VI), Polybrominated Biphenyls (PBB),Polybrominated Diphenyl Ethers (PBDE),Bis(2-Ethylhexyl) phthalate (DEHP): Benzyl butyl phthalate (BBP),Dibutyl phthalate (DBP): Diisobutyl phthalate (DIBP)

The sum of these heavy metals from possible contaminations is below 100ppm (DIN 38 406) and complies with article 11 of EU Directive 2002/95/EC and 2004/12/EC amending directive 94/62/EEC (packaging and packaging waste), with the CONEG Legislation in the USA as well as EN71.

REACH Compliance

ARYAFILM is Bi Axially Oriented Polyester film, Produced and supplied by JBF RAK LLC, RAK is exempted from the obligation to submit registration to REACH regulation 1907/2006/EC.

ARYAFILM can be defined as “Articles” according to the article 3.3, Chapter 2 Title I in 1907/2006/EC.

Although substances and intermediate must submit registration, but “Articles” are exempted from submitting registration”.

ARYAFILM does not have any intended release material that must be registered according to the articles 7.1. (b), Chapter 1, Title II in 1907/2006/EC.

Also, ARYAFILM does not contains 219 substances of very high concern (SVHC) defined in Article 57 of REACH regulation. Declared till 8th July 2021 by ECHA.

Dual use additives

The film does not contain substances authorized as food additives or flavourings which could migrate into food, causing either a technical or non-compliance of the food stuffs (so called “dual use additives”).

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For the production of ARYAFILM no dangerous substances and plasticizers are used. In particular we certify that the film does not contain by intention any of the following substances:

- Phthalates, Phenols and its derivatives, styrenes, halogens containing substances, latex, cellulose film 93/10/EEC and amendment 93/111/EC and 2004/14/EC, perflorourinated alkyl compounds (PFA compounds), “BADGE” (Bisphenol A diglycidyl ether) or related compounds (“BFDGE” and” NOGE“) (EU Directive 2002/16/EC), ITX (Isopropylthioxanthone), Bisphenol F, hydrazine’s, Nitrosamines, Compounds labeled “N” in annex 1 to directive 67/548/EC, Semicarbazid / Azodicarbonamid, Epoxidised oil of Soya, Ethylhexane acidity, Animal or human origin products, Ozone depleting chemicals, Natural rubber and/ or any dry rubber latex , PCB Polychlorized Biphenyl (Chlorbiphenyl;e), Epoxyderivatives (1895/2005/EC), PVC /PVDC 78/142/EEC, 81/432/EEC AND 80/766/EEC a
- No allergens according to directive EU No.1169/2011 of 25 Oct 2011 amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006. Directive 2003/53EC amendment council directive 76/769/EEC, amendment council directive 2005/84/EC related to restriction of nonylphenol, nonylphenol ethoxylate, phthalates and cement.
- CoE AP (89) 1 on the use of colourants (including dyes and pigments) in plastics material coming in to contact with food.
- CoE AP (92) 2 on control of Aids to polymerization.
- The film is not subject to labeling as a hazardous chemical or mixture according to 67/548/EEC, 1999/45/EC and 1272/2008 (GHS Regulations). It is not classified as hazardous to water according to German regulations (no “WGK”). The formulation contains no substances forbidden or restricted by 76/769/EC and Annex XVII of REACH. As waste, it does not form materials that require monitoring according to Directive 91/689/EEC and 91/156/EEC, i.e., it is not hazardous waste.

For JBF RAK LLC

Authorized Signatory

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